



CHAPTER xvi

An Act to authorise the Tees Conservancy Commissioners to establish and maintain a superannuation scheme for their officers and servants to transfer to that scheme the Tees Commission Superannuation Fund and for other purposes. [20th May 1953.]

WHEREAS—

(1) By the Tees Conservancy Acts 1852 to 1950 the Tees Conservancy Commissioners (hereinafter called “the Commissioners”) are constituted and incorporated and invested with powers for the conservancy improvement and regulation of the river Tees for the construction of works and reclamation of land the making management and carrying on of docks and wharves quays landing places and the like and for other purposes:

(2) By the Tees Conservancy Act 1907 (hereinafter called “the Act of 1907”) there was established the Tees Commission Superannuation Fund (hereinafter called “the old fund”) for the provision of superannuation allowances and other benefits to the officers and servants (hereinafter called “the members of the old fund”) of the Commissioners under the management of the Commissioners:

(3) The last made actuarial valuation of the old fund disclosed a deficiency which under the Act of 1907 falls to be repaired by the Commissioners save to the extent that in certain circumstances additional contributions would become payable by the members of the old fund:

(4) It is desired to relieve the members of the old fund from obligation under whatsoever circumstances to make any additional contributions towards the repair of the said deficiency:

(5) The Commissioners are willing to become solely responsible for repairing the said deficiency:

(6) The Commissioners desire to alter the benefits for their future officers and servants and in addition to provide benefits for widows and other dependants and to require both from those future officers and servants and from the Commissioners contributions at higher rates than those of the contributions payable under the provisions of the Act of 1907 and it is accordingly expedient to establish a superannuation scheme (hereinafter called "the scheme") for that purpose:

(7) It is desired to provide for some of the members of the old fund some part of those altered benefits without requiring from them any additional contributions and to allow them the option of having other parts of those altered benefits upon their agreeing to pay additional contributions:

(8) It is accordingly expedient to absorb the old fund into the scheme preserving all the existing rights of the members of the old fund and subject as aforesaid to the undertaking by the Commissioners of the sole responsibility for repairing the deficiency of the old fund:

(9) It is expedient that the other provisions of this Act should be enacted:

(10) The purposes of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Preliminary

Short title.

1. This Act may be cited as the Tees Conservancy Superannuation Scheme Act 1953.

Commence-
ment of Act.

2. This Act shall come into operation on the first day of November one thousand nine hundred and fifty-three (which date is hereinafter referred to as the commencement of this Act).

Interpretation.

3. In this Act unless the context otherwise requires the expression—

"accumulated contributions" means in relation to any contributor the total contributions paid by him accumulated to the date of his death or to the date on which he

otherwise ceases to be a contributor whichever date is the earlier with interest added on the thirtieth April and the thirty-first October each year calculated at the rate of two-and-a-half per centum per annum on the amount of the contributions and any interest previously added at the previous half-yearly date;

- “ Act of 1907 ” means the Tees Conservancy Act 1907;
- “ actuary ” means a fellow of the Institute of Actuaries or a fellow of the Faculty of Actuaries in Scotland;
- “ the actuary ” means the actuary or if more than one any of the actuaries or a firm of actuaries for the time being appointed by the Commissioners as actuary of the scheme under the provisions of section 26 (Management of scheme) of this Act;
- “ added years ” has the meaning assigned to it by section 20 (Added years) of this Act;
- “ authorised investments ” means the investments specified in the Second Schedule to this Act;
- “ Commissioners ” means the Tees Conservancy Commissioners;
- “ contributor ” has the meaning assigned to it by section 5 (Contributors) of this Act;
- “ employee ” means any person (whether officer or servant) in the whole-time employment of the Commissioners;
- “ member of the old fund ” means throughout the remainder of his natural life so long as he remains an employee or is a pensioner any person who was contributing to the old fund or who was receiving a pension from the old fund at the commencement of this Act;
- “ normal pension age ” means for a man the age of sixty-five years and for a woman the age of sixty years;
- “ old fund ” means the Tees Commission Superannuation Fund established by the Act of 1907;
- “ pensionable remuneration ” means the average annual amount of the scheme remuneration during the three years of service immediately preceding retirement or in the case of a member of the old fund during the five such years if that average is larger than the three year average;
- “ pensionable service ” means the aggregate of—
 - (a) service in respect of which the employee has paid contributions under the Act of 1907 or under this Act other than service in respect of which his contributions have been refunded to him and not returned by him; and

(b) such additional period if any as is prescribed under the provisions of section 25 (Transfers into scheme) of this Act in respect of previous membership of any other superannuation scheme from which a transfer value has been received by this scheme; and

(c) such additional period if any of added years as is prescribed under the provisions of section 20 (Added years) of this Act;

“pensioned widow” has the meaning assigned to it by section 14 (Widow’s pension) of this Act;

“pensioner” means any person currently in receipt of a pension under the provisions of this Act;

“remuneration” means—

(a) in relation to a member of the old fund his salary or wages as previously interpreted under the Act of 1907 currently being paid to him from time to time; and

(b) in relation to a contributor who is not a member of the old fund the salary or wages currently being paid to him from time to time including war or other cost-of-living bonus but excluding any sums received by way of special allowances or commissions and any overtime payments and any emoluments in kind;

“scheme” means the superannuation scheme established by this Act;

“scheme remuneration” means—

(a) in relation to a member of the old fund his remuneration defined as aforesaid; and

(b) in relation to a contributor who is not a member of the old fund his remuneration defined as aforesaid subject to a reduction at the rate of one hundred and four pounds per annum;

“service” means whole-time employment by the Commissioners including such employment prior to the commencement of this Act;

“young child” means in relation to any contributor any child under the age of sixteen of that contributor or to whom in the opinion of the Commissioners he stood in loco parentis.

Establishment of superannuation scheme

Establishment
of
superannuation
scheme.

4. There shall at the commencement of this Act be established the Tees Commission Superannuation Scheme for the provision of pensions and other benefits to employees.

5. Subject to the provisions of this Act every person who— **Contributors.**

(a) at the commencement of this Act is—

- (i) a member of the old fund; or
- (ii) an employee who is not a member of the old fund and not being disqualified by section 6 (Exclusions from scheme) of this Act makes written application for admission to the scheme and receives the consent of the Commissioners; or

(b) after the commencement of this Act becomes an employee and has attained the age of twenty-one and either—

- (i) has completed at least six months' continuous service; or
- (ii) has previously been a member of any other superannuation scheme from which a transfer value has been received by the scheme;

shall be a contributor to the scheme while under normal pension age and shall contribute while under that age either such percentage of his scheme remuneration as is specified by section 7 (Scale of contributions) of this Act subject to the provisions of section 8 (Reduction of remuneration) of this Act (such amount to be deducted from his remuneration at the time it is paid to him) or under the provisions of section 9 (Cessation of remuneration) of this Act the amount there specified (payable if and when lawfully demanded by the Commissioners) together with any additional contributions agreed under the provisions of section 19 (Optional benefits for male members of old fund) and section 20 (Added years) of this Act or either of them.

6. Notwithstanding anything to the contrary in section 5 **Exclusions** (Contributors) of this Act any person not granted the benefit of **from scheme.** added years under the provisions of the said section 20 of this Act who—

(a) at the commencement of this Act is an employee but not a member of the old fund; or

(b) after the commencement of this Act becomes an employee for the first time otherwise than under the provisions of section 25 (Transfers into scheme) of this Act;

and in either case is of an age if a man greater than fifty-four-and-a-half years or if a woman greater than forty-nine-and-a-half years shall not become a contributor of the scheme and shall be excluded from all the provisions of the scheme.

Contributions

7.—(1) Subject to the provisions of the said sections 19 and 20 **Scale of** and to the provisions of section 31 (Future actuarial valuations) **contributions.** of this Act the percentage of scheme remuneration to be contributed until reaching normal pension age by every member of

the old fund shall be dependent upon the age at which he first became a contributor to the old fund and the percentage of scheme remuneration to be contributed until reaching normal pension age by every other contributor shall be dependent upon the age at which he first becomes a contributor to the scheme as specified in the following table:—

Age upon first becoming a contributor		Percentage for a member of the old fund	Percentage for any other contributor	
			Woman	Man
Under 25	...	$2\frac{1}{2}$	$5\frac{1}{2}$	$6\frac{3}{4}$
Attained 25 and under 30	...	$2\frac{3}{4}$	6	$7\frac{1}{4}$
Attained 30 and under 35	...	$3\frac{1}{4}$	$6\frac{1}{2}$	$7\frac{3}{4}$
Attained 35 and under 40	...	$3\frac{3}{4}$	7	$8\frac{1}{4}$
Attained 40 and under 45	...	$4\frac{1}{2}$	$7\frac{1}{2}$	$8\frac{3}{4}$
Attained 45	...	5		

(2) No employee shall pay any contributions after he attains normal pension age.

Reduction of
remuneration.

8. Whenever the remuneration of an employee who is within ten years of normal pension age is reduced and in the opinion of the Commissioners that reduction is not due to the wilful fault of that employee he shall upon giving notice within three months in writing to the Commissioners continue to pay contributions at the rate at which he was paying contributions immediately before such reduction and shall also pay the additional contribution which but for the reduction would fall to be paid by the Commissioners until the date if any upon which his remuneration rises above his remuneration immediately before such reduction and thereupon for all the purposes of the scheme until that date his scheme remuneration shall be deemed to be an amount equal to that of his scheme remuneration immediately before such reduction.

Cessation of
remuneration.

9. Whenever a person is on sick leave or other leave of absence approved by the Commissioners and but for being on either such leave would in the opinion of the Commissioners have been an employee and his contribution as provided by section 7 (Scale of contributions) of this Act is nil his contribution to the scheme shall be at the nominal rate of one penny each month.

Contributions
of
Commission-
ers.

10. Subject to the provisions of this Act the contributions payable by the Commissioners out of the revenue account of the Commissioners shall be—

- (a) an amount payable at the end of each half-year ending thirtieth April and thirty-first October equal to the contributions of all the contributors during that half-year; and

- (b) such additional contributions as are found to be necessary upon the advice of the actuary to maintain the solvency of the scheme under the provisions of section 31 (Future actuarial valuations) of this Act; and
- (c) such further contributions as may be necessary on the advice of the actuary to cover the increased cost of the benefits of those contributors who are granted an allowance of added years under the provisions of section 20 (Added years) of this Act and do not themselves pay the whole of the increased cost.

Benefits

11. Subject to the provisions of this Act every contributor Pension. who has completed not less than ten years' service shall—

- (a) upon retiring from employment at or after normal pension age; or
- (b) upon retiring from employment before normal pension age because in the opinion of the Commissioners he is incapable of discharging his duties by reason of permanent infirmity of mind or body or of permanent disablement by accident not in any such case due to his own misconduct or default ;

be paid a pension for life of the amount specified in the next following section subject to reduction by such part as the Commissioners in their absolute discretion elect of any periodical payments the pensioner is currently receiving as statutory compensation arising from an accident.

12.—(1) The annual rate of pension payable to a member of the Amount of old fund who retires from employment under the provisions of pension. section 11 (Pension) of this Act shall subject to the provisions of section 19 (Optional benefits for male members of old fund) of this Act be one-sixtieth of his pensionable remuneration for each completed year not exceeding forty of his pensionable service.

(2) The annual rate of pension payable to a contributor who is not a member of the old fund who retires from employment under the provisions of the said section 11 of this Act and if a man who retires at or before normal pension age has not a wife alive at the time he retires or if a man who retires after normal pension age had not a wife alive on the day he attained that age shall be one-seven-hundred-and-twentieth of his pensionable remuneration for each completed month not exceeding four hundred and eighty months of his pensionable service so however that the annual rate of pension shall not exceed two thousand pounds.

(3) The annual rate of pension payable to a contributor who is not a member of the old fund who retires from employment under the provisions of the said section 11 of this Act and if a man who retires at or after normal pension age has a wife alive at the time he retires or if a man who retires after normal pension age had a wife alive on the day he attained that age shall be five-sixths of the rate of pension specified in the last preceding subsection:

Provided that—

- (a) when retirement takes place at the request of the Commissioners at an age above normal pension age the annual rate of pension may be increased to such extent if any as the Commissioners approve upon the advice of the actuary;
- (b) if the health of any pensioner who retires before reaching normal pension age becomes before he reaches that age so far re-established that in the opinion of the Commissioners he is fit for duty and he is offered employment by the Commissioners which he does not accept his pension shall cease but shall recommence when he reaches normal pension age;
- (c) if any pensioner is offered employment by the Commissioners whether before or after he attains normal pension age and accepts such employment his pension shall during the continuance of that employment be reduced by such amount as to the Commissioners seems proper not however so that his pension thus reduced when added to his remuneration is less than the amount of his pension immediately before he was so offered employment.

Withdrawal
refund
reinstatement
and death
refund.

13.—(1) Whenever an employee ceases otherwise than by death to be an employee and is not entitled to receive a pension there shall upon demand in writing be refunded to him his accumulated contributions provided that he has not at that time become subject to the provisions of section 24 (Transfers to other schemes) of this Act.

(2) An employee to whom the last preceding subsection applies who within one year of leaving the employ of the Commissioners returns to that employ and has not received the refund which that subsection provides or having received it exercises the option of repaying it on such terms and conditions as the Commissioners prescribe shall thereupon be reinstated in his former rights or if he has been paid the refund and does not repay it on demand he shall become a member of the scheme as a new entrant.

(3) Whenever any person dies who at the time of his death—

(a) is a member of the old fund and is either—

(i) a contributor; or

(ii) an employee over normal pension age; or

(b) is not a member of the old fund and leaves no widow him surviving entitled to a widow's pension under the provisions of section 14 (Widow's pension) of this Act and is either—

(i) a contributor; or

(ii) an employee over normal pension age; or

(iii) a pensioner; or

(iv) a person who has ceased to receive and has not again begun to receive a pension by reason of proviso (b) to subsection (3) of section 12 (Amount of pension) of this Act;

there shall be paid to his personal representatives the amount of his accumulated contributions reduced by the total pension payments (if any) he has received:

Provided that upon the death of an employee who is a member of the old fund the Commissioners may add to the amount so paid the whole or any part of the corresponding amount which has been contributed by them in respect of that employee.

14. Whenever any male person who is not a member of the old fund dies and at the time of his death is either— Widow's pension.

(i) a contributor; or

(ii) an employee over normal pension age; or

(iii) a pensioner; or

(iv) a person who has ceased to receive and has not again begun to receive a pension by reason of proviso (b) to subsection (3) of section 12 (Amount of pension) of this Act;

and who leaves a widow him surviving to whom he was married before he attained age sixty-five (hereinafter referred to so long as she remains a widow as a "pensioned widow") she shall be paid a pension (ceasing upon her remarriage) of sixty per centum if she be not more than ten years younger than her deceased husband or if she be more than ten years younger than her deceased husband such percentage as the actuary may from time to time prescribe of the pension which—

in case (i) her husband would have received had he retired on pension under the provisions of paragraph (b) of section 11 (Pension) of this Act on the day before he died;

in case (ii) her husband would have received had he retired at normal pension age;

in case (iii) her husband was receiving at the date of his death if he retired at or before normal pension age or would have been receiving if he had so retired;

in case (iv) her husband had been receiving prior to the operation of proviso (b) to subsection (3) of section 12 (Amount of pension) of this Act.

Pensioned
widow's death
refund.

15. Whenever a pensioned widow dies there shall be paid to her personal representatives the amount (if any) by which her deceased husband's accumulated contributions exceed the total of the pension payments she has received together with the total of the pension payments (if any) her husband received before she became a widow.

Young child
allowances
while widow
alive.

16. During the lifetime of every pensioned widow there shall be paid an allowance in respect of a young child of her deceased husband equal to one-quarter of her pension or if and so long as there is more than one such young child an allowance equal to one-half of her pension.

Young child
allowances
when no
widow.

17. If a male contributor or a male pensioner not in either case a member of the old fund dies leaving no pensioned widow or after the subsequent death or remarriage of a pensioned widow there shall be paid an allowance in respect of a young child of that contributor or pensioner equal to one-half of the pension to which his widow prior to remarriage would have been entitled under the provisions of section 14 (Widow's pension) of this Act or if and so long as there is more than one such young child an allowance equal to the whole of that pension.

To whom
young child
allowances
payable.

18. When under either of the last two preceding sections of this Act an allowance is payable in respect of any young child the Commissioners may at their discretion—

- (a) pay the allowance to the child's guardian or to any person with whom the child resides or under whose care and control he is or appears to be without being obliged to ascertain whether such guardian or other person has any right to the care and control of that child or to supervise the application of the allowance by such guardian or other person and without being responsible for any misapplication; or
- (b) apply the allowance or any part of it towards the maintenance education or other benefit of the child in any other way they may see fit; or

- (c) retain the allowance or any part of it until the child attains the age of twenty-one years and thereafter pay the amount so accumulated to the child.

19. Any male member of the old fund who makes written application within three months after the commencement of this Act and agrees thereafter— Optional benefits for male members of old fund.

- (a) until normal pension age to pay the additional contribution specified in the First Schedule to this Act subject to the provisions of section 31 (Future actuarial valuations) of this Act;
- (b) to be treated as a contributor who is not a member of the old fund for all the purposes of subsection (3) of section 12 (Amount of pension) of this Act paragraph (a) and sub-paragraphs (i) and (ii) of paragraph (b) of subsection (3) of section 13 (Withdrawal refund reinstatement and death refund) of this Act and the proviso to subsection (3) of that section;

shall thereafter pay such additional contribution and be treated as a contributor who is not a member of the old fund for all the purposes of sections 14 (Widow's pension) 15 (Pensioned widow's death refund) 16 (Young child allowances while widow alive) 17 (Young child allowances when no widow) and 18 (To whom young child allowances payable) of this Act.

20. If and whenever in the opinion of the Commissioners the circumstances of an employee call for special treatment his pensionable service shall be deemed to be increased by a number of years (in this Act referred to as "added years") to be specified by the Commissioners: Added years.

Provided that unless the employee thereupon pays to the scheme such sum as the actuary certifies is required to meet the additional liability thereby thrown upon it either the employee or the Commissioners or both of them shall pay such additional contributions (not however so as to require from the employee a total contribution in excess of fifteen per centum of his remuneration) as the actuary certifies to be required to meet that additional liability.

Financial and general provisions

21. All pensions and allowances shall be paid monthly in arrear with proportion to the date of cessation at such times at such places in such manner and subject to such evidence of health survival and identity as the Commissioners prescribe. How pensions and allowances payable.

Pensions and
allowances
non-alienable.

22.—(1) A pension or other allowance payable under this Act is not assignable and shall cease to be paid or payable if the recipient attempts to alienate charge or anticipate it or part of it or does or suffers anything whereby whether by operation of law or otherwise that pension or allowance if belonging to the recipient absolutely would be or become wholly or in part payable to another person.

(2) If a pension or allowance ceases to be paid or payable under the provisions of this section then and in every case the Commissioners may in their discretion pay or apply such pension or allowance or any part of it for the support or maintenance of the former recipient or his wife or children or remoter issue or dependants of either of them and such payment or application shall be a sufficient discharge.

Estate duty.

23. If any liability to estate duty arises in respect of any benefit to be paid to any person under this Act the Commissioners may deduct the amount of such duty (including any interest payable thereon) from such benefit or may postpone its payment until the liability has been provided for to the satisfaction of the Commissioners.

Transfers to
other schemes.

24. If a contributor leaves the employ of the Commissioners and within one year thereafter enters other employment in respect of which he is entitled to become a member of a superannuation scheme a transfer value payment may be paid from the scheme to that other superannuation scheme if the Commissioners so determine:

Provided that no such transfer value payment shall be paid unless the superannuation scheme to which the contributor transfers—

(a) is a scheme to which any interchange rules or regulations made under the Superannuation (Miscellaneous Provisions) Act 1948 and applicable to this scheme apply; or

(b) is approved under section 379 of the Income Tax Act 1952 in which case the transfer value shall be the amount approved by the Commissioners.

Transfers into
scheme.

25.—(1) If an employee has been a member of any other superannuation scheme before commencing employment with the Commissioners—

(a) the scheme may receive any sum payable to or in respect of that employee on his ceasing to be a member of that other scheme under the provisions of that other scheme; and

- (b) arrangements may be made under the scheme for the continuation of the payment of any additional contributions which such a member was in course of making under that other scheme;

and the employee shall thereupon if he has attained the age of twenty-one or when he attains that age become a contributor to the scheme with such period of pensionable service and such additional benefits as—

- (i) are agreed in consequence of the making of rules under the Superannuation (Miscellaneous Provisions) Act 1948; or
- (ii) the actuary certifies are appropriate where the aforesaid rules do not apply.

(2) Where a sum is received under paragraph (a) of subsection (1) of this section that part and no more of such sum shall be treated as contributor's contributions as would under the provisions of that other scheme have been payable to the employee on withdrawal from it.

26. The scheme shall be managed by the Commissioners who shall appoint officers necessary for the purpose (who shall for the purposes of the scheme be deemed to be employed by the Commissioners) and shall from time to time appoint an actuary of the scheme and an auditor of the scheme under the provisions of section 29 (Accounts and audit) of this Act.

27.—(1) In each financial year there shall be set aside out of the contributions to the scheme of the Commissioners a sum equal to one-and-a-quarter per centum of the total remuneration upon which the contributions of those male contributors who are not members of the old fund have been calculated during that year and that sum (in this section referred to as "the management fund") shall be made available to the Commissioners for and towards the costs and expenses of managing the scheme under the provisions of section 26 (Management of scheme) of this Act including the cost of professional advice and of the actuarial valuations for which section 31 (Future actuarial valuations) of this Act provides and of the auditing of the accounts of the scheme under the provisions of section 29 (Accounts and audit) of this Act but excluding the costs and expenses of making holding and realising investments under the provisions of section 28 (The new fund) of this Act.

(2) In any financial year in which the total of the costs and expenses to which the last preceding subsection refers exceed the sum set aside for the management fund under that subsection the excess shall be provided from the revenue account of the

Commissioners and at the end of any financial year at which there remains an unexpended balance in the management fund that balance shall be carried forward as a credit towards the contributions required from the Commissioners in the succeeding year or years.

The new fund. **28.**—(1) At the commencement of this Act a fund (in this Act referred to as “the new fund”) shall be established and there shall be carried and credited thereto—

(a) all contributions and other sums paid to the scheme and assets transferred to the scheme; and

(b) all dividends interest bonuses and realised profits arising out of or accruing from the investment or use of the moneys of the new fund.

(2) There shall be paid or transferred from or defrayed out of the new fund—

(a) all benefits and other sums paid from and assets transferred from the scheme under any of the provisions of this Act; and

(b) all costs and expenses of making holding and realising the investments of the new fund.

(3) To the extent that in the opinion of the Commissioners the moneys of the new fund are not required for immediate needs they shall be invested in authorised investments with power to sell such investments or any of them for the purpose of varying them or in order that the scheme may pay out benefits in excess of current income.

(4) Any moneys of the new fund not so invested may be placed by the Commissioners on current account or on deposit account with such banks as the Commissioners from time to time determine under regulations made by the Commissioners for the operation of such bank accounts including the signing and endorsing of cheques in connection therewith.

(5) If and to the extent that at any time the Commissioners deem it inadvisable to sell any investments they may borrow moneys on the security of those investments for the purpose only of paying out benefits in excess of current income.

Accounts and
audit.

29. The Commissioners shall cause to be kept full and true accounts of the capital income and outgoings of the scheme and such accounts shall be audited at least once in every year by an auditor or firm of auditors to be appointed by the Commissioners:

Provided that no person or firm shall be qualified for appointment as auditor unless he is a member or in the case of a firm

unless all the partners are members of one or more of the following bodies:—

- The Institute of Chartered Accountants in England and Wales;
- The Society of Incorporated Accountants and Auditors;
- The Institute of Chartered Accountants of Scotland;
- The Association of Certified and Corporate Accountants;
- The Institute of Chartered Accountants in Ireland.

30.—(1) The actuarial investigation required by subsection (3) of section 21 (Actuarial investigation) of the Act of 1907 to be made after the thirty-first day of October nineteen hundred and fifty-two shall not be made if it has not been made at the commencement of this Act and the actuarial valuation first referred to in the next succeeding section of this Act shall be deemed to be made in lieu thereof. Actuarial investigation under Act of 1907.

(2) No action or other legal proceedings whatsoever shall be instituted in any court of law because of the default of the Commissioners in not complying on or after the thirty-first day of October nineteen hundred and fifty-two with subsection (3) of the said section 21 of the Act of 1907 or for or on account of any matter arising directly or indirectly from that default.

31.—(1) As soon as may be after the commencement of this Act and thereafter at least once in every five years the scheme shall be valued by the actuary who shall report in writing to the Commissioners upon its financial position and a copy of that report shall upon application be made available to every contributor by such means and in such form as to the Commissioners seem expedient. Future actuarial valuations.

(2) Whenever the valuation discloses a deficiency the Commissioners shall pay either—

- (a) such lump sum additional contribution as the actuary advises is necessary to repair that deficiency; or
- (b) such additional contributions for a period of not more than forty years as is agreed between the actuary and the Commissioners to be appropriate.

(3) Whenever the valuation discloses a surplus the actuary shall advise whether and if so to what extent the amount of additional contributions made by the Commissioners in the past whether before or after the commencement of this Act for the purpose of repairing a deficiency or deficiencies can be credited to them and applied until exhausted to the payment of contributions which otherwise would be payable by the Commissioners under the provisions of paragraphs (a) and (b) of section 10

(Contributions of Commissioners) of this Act or either of those paragraphs and whether and if so to what extent any outstanding additional contributions to be made by the Commissioners for the purpose of repairing a deficiency can be remitted and subject thereto the extent if any to which the contributions of the members of the old fund or of the members who are not members of the old fund or both can be reduced whereupon if the Commissioners so resolve those contributions respectively shall be reduced to that or to any less extent.

(4) At any time the actuary may advise whether it is desirable that the contributions be changed or the benefits payable under the scheme or any of them be reduced in respect of those persons who thereafter become contributors and if so to what extent respectively whereupon the Commissioners may by resolution so or to a less extent change those contributions or reduce those benefits in respect of those persons.

Copies of Act. 32. Every member of the old fund shall as soon as may be after the commencement of this Act and every other person who thereafter becomes a contributor shall thereupon be given a copy of this Act free of charge and thereafter every contributor shall be entitled to a copy of this Act upon payment of the sum of five shillings.

Absorption of old fund by scheme. 33. Immediately upon the commencement of this Act the whole of the assets and liabilities of the old fund shall become and thereafter be part of the assets and liabilities respectively of the scheme whereupon—

- (a) so much of the assets of the old fund as have been invested under the provisions of section 9 (Investment of surplus moneys) of the Act of 1907 shall become part of the new fund; and
- (b) the members of the old fund shall thereafter pay contributions to the scheme instead of to the old fund; and
- (c) the pensions currently being paid shall thereafter be paid from the scheme instead of from the old fund.

Repeal. 34. Part II (consisting of sections 3 to 21 thereof both inclusive) of the Act of 1907 is hereby repealed:

Provided that nothing in this repeal shall affect anything duly done or suffered under the Act of 1907 or any right privilege or obligation or liability acquired accrued or incurred thereunder.

Costs of Act. 35. All costs charges and expenses preliminary to and of and incident to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Commissioners.

SCHEDULES

FIRST SCHEDULE

ADDITIONAL CONTRIBUTIONS REFERRED TO IN SECTION 19 (OPTIONAL BENEFITS FOR MALE MEMBERS OF OLD FUND) OF THIS ACT

Percentage of scheme remuneration

Age at date of application under section 19	Age upon first becoming a Contributor					
	Under 25	Attained 25 and under 30	Attained 30 and under 35	Attained 35 and under 40	Attained 40 and under 45	Attained 45 and under 50
Under 25 ...	1½	—	—	—	—	—
Attained 25 and under 30 ...	1½	1½	—	—	—	—
Attained 30 and under 35 ...	1½	1½	1½	—	—	—
Attained 35 and under 40 ...	2½	2	1½	1½	—	—
Attained 40 and under 45 ...	2½	2½	2½	1½	1½	—
Attained 45 and under 50 ...	3½	3½	2½	2½	1½	1½
Attained 50 and under 55 ...	4½	4½	3½	3	2½	1½
Attained 55 and under 60 ...	6½	5½	5	4½	3½	2½
Attained 60 and under 65 ...	8½	7½	6½	5½	4½	4

SECOND SCHEDULE

AUTHORISED INVESTMENTS

1. Investments authorised by the Trustee Act 1925 or in which trustees are for the time being by law authorised to invest trust funds including any investments which would but for the provisions of section 2 of that Act be authorised by section 1 of that Act.
2. The purchase of or the advance of money upon the security of any real or leasehold premises in Great Britain.
3. The purchase of or the advance of money upon the security of the stocks bonds mortgages or other securities of any public body board or authority supplying power water gas or electricity or of any harbour board or of any municipal corporation county or district council or other local authority acting under statutory powers in the United Kingdom or in any British dominion or colony mandated or trusteeship territory state or dependency.
4. Any stocks funds or securities of any British dominion colony mandated or trusteeship territory state or dependency or of any province thereof.

2ND SCH.
—cont.

5. Any stocks bonds mortgages shares or securities the capital whereof or a minimum rate of interest whereon is guaranteed by the British Government or the government of any British dominion colony mandated or trusteeship territory state or dependency or of any province thereof.

6. The purchase of or the advance of money upon the security of the bonds debentures debenture stock mortgages or securities or guaranteed or preference stock or shares of any railway shipping tramway canal water dock harbour gas electricity transport or other like utility company public or private incorporated in the United Kingdom or any British dominion colony state or dependency by or under any general or special Act of the Imperial Parliament or of the legislature of any British dominion colony state or dependency or by royal charter and whether trading or carrying on business in the United Kingdom India Pakistan or any British colony dominion state or dependency or elsewhere.

7. The advance of money in or upon the security of the rates revenues funds property or profits of or leviable by or belonging to any municipal corporation county or district council local or public authority or body in the United Kingdom or any British dominion colony state or dependency and authorised by any special or general Act of the Imperial Parliament or the legislature of such dominion colony state or dependency to be mortgaged or charged.

8. Debentures debenture stock bonds or other obligations of any company public or private incorporated with limited liability in the United Kingdom.

9. Assets of whatever nature (including assets of a wasting or reversionary nature and assets to which liabilities attach) which are transferred to the scheme as part of the assets of the old fund or of any transferred scheme.

Table of Statutes referred to in this Act

Short title	Session and chapter
Tees Conservancy Act 1907	7 Edw. 7. c. civ.
Trustee Act 1925	15 Geo. 5. c. 19.
Superannuation (Miscellaneous Provisions) Act 1948	11 & 12 Geo. 6. c. 33.
Income Tax Act 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 10.

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Tees Conservancy Superannuation Scheme Act, 1953

1 & 2 ELIZ. 2 Ch. xvi

ARRANGEMENT OF SECTIONS

Preliminary

Section

1. Short title.
2. Commencement of Act.
3. Interpretation.

Establishment of superannuation scheme

4. Establishment of superannuation scheme.
5. Contributors.
6. Exclusions from scheme.

Contributions

7. Scale of contributions.
8. Reduction of remuneration.
9. Cessation of remuneration.
10. Contributions of Commissioners.

Benefits

11. Pension.
12. Amount of pension.
13. Withdrawal refund reinstatement and death refund.
14. Widow's pension.
15. Pensioned widow's death refund.
16. Young child allowances while widow alive.
17. Young child allowances when no widow.
18. To whom young child allowances payable.
19. Optional benefits for male members of old fund.
20. Added years.

Financial and general provisions

21. How pensions and allowances payable.
22. Pensions and allowances non-alienable.
23. Estate duty.
24. Transfers to other schemes.

Section

25. Transfers into scheme.
26. Management of scheme.
27. Expenses of management.
28. The new fund.
29. Accounts and audit.
30. Actuarial investigation under Act of 1907.
31. Future actuarial valuations.
32. Copies of Act.
33. Absorption of old fund by scheme.
34. Repeal.
35. Costs of Act.

SCHEDULES:

First Schedule—Additional contributions.

Second Schedule—Authorised investments.